MIRIAM PHIRI (NEE SISALA)
versus
KEPHAS PHIRI

HIGH COURT OF ZIMBABWE
ZISENGWE J
MASVINGO, 9 OCTOBER 2025
Judgement delivered on 7 January 2026

T. Mafuka; for the plaintiff
M.S Mhuka; for the defendant

CIVIL TRIAL - DIVORCE

ZISENGWE J: This judgment finally puts to an end a marriage whose latter days were characterized by acrimony and discontentment between the parties. This disharmony prompted the plaintiff to sue out summons against the defendant for divorce citing irretrievable breakdown of marriage as well as an order for the division of the assets acquired during the currency of the marriage.

As a matter of fact, the parties are resigned to the fact that their marriage has irretrievably broken down and are therefore both amenable to its dissolution on that basis. Further, the parties are agreed on the division of the bulk of their property save for one –namely stand No. 3214 Lot 2 Makwasha, Zishavane, ("the house"). Whereas the plaintiff insists that she be awarded between 40%-45% of the value of its value, the defendant maintains that the plaintiff be awarded a maximum of 15% thereof. Neither is prepared to budge. It is to this issue that this judgment is almost entirely dedicated.

The background

The parties are married in terms of the Marriage Act *[Chapter 5:11]*, (now section 5 (1) of the Marriages Act *[Chapter 5:17]* which marriage was solemnized on 20 May 2011. Prior to that

date they had been living together in terms of an unregistered customary law union, which union had subsisted since 2003. For all intents and purposes, therefore, the parties have been living as a married couple for the greater part of 22 years.

It is common cause that the marriage was not blessed with any children. However, the couple raised in their household some of the defendant's children from an earlier marriage and those of his sister.

The issue

The sole issue for determination, as stated above, is the appropriate ratio of the division of the house as between them.

The evidence

The parties were the sole witnesses for their respective cases.

The plaintiff's case.

In support of her position that she deserves between 40% and 45% of the value of the house, the plaintiff testified that she contributed in various ways towards both its acquisition and its improvement.

As far as it's acquisition is concerned, while acknowledging that the defendant obtained this property as a housing benefit from his then employer, Mimosa mines, she none the less pointed to her indirect contribution thereto. In this regard she testified that whereas much of the defendant's salary went towards servicing the loan for the purchase price, she for her part, catered for the day to day needs of the household, especially food. To achieve that she undertook some small-scale trading business in agricultural produce such as groundnuts. She also testified that she would do some informal cross border trading.

With respect to the improvement of the house, it was her evidence that the house was acquired as a two roomed core-house comprising only a bedroom and kitchen but the two of them have since improved it to the six-roomed structure it is today. According to her, the property now boasts of a perimeter wall, tiled floors and a ceiling. She estimated the property to have been valued at approximately US$11 000 at the time of its acquisition but is now valued at about US$ 36 000.

She testified that her contribution towards the improvement of the house consisted of physically taking part in crushing rocks to form "concrete" stones in *lieu* of purchasing commercial

concrete stones. Further, she testified that she purchased window frames from Messina, South Africa and some asbestos sheets. She would also clarify during cross examination that she also paid builders from her exploits as an informal trader, the payment coming on the form of blankets.

She would however concede under cross examination that she did not contribute towards the transfer fees for the property.

She rejected outrightly the defendant's' offer at 15% of the value of the property and lamented that the defendant is being mean to her an account of her barrenness.

The defendant's evidence

The defendant insists that the plaintiff only deserves 15% of the value off the property as her contribution towards its improvement was minimal. He testified that he received this property as a housing benefit from Mimosa Mines where he was employed as an "Engineering clerk".

He further explained that this housing scheme operated on a rent-to-buy basis wherein the employee would occupy the house and make monthly payments towards the purchase price for two years. The monthly payment was US$60.

He confirmed the plaintiff's account that when he acquired the house around 2002, it was a two-roomed structure whose estimated value he gave as US$10 000. He testified that the extension of the property commenced in 2008.

He disputed the plaintiff's version that she was largely responsible for the upkeep of the household, insisting as he did that he provided for both the plaintiff and the children. He pointed out that in any event it was him who provided the capital for the plaintiff's informal business ventures.

He further disputed the plaintiff's account that she took part on the crushing of rocks into concrete stones maintaining as he did that this was done by the builders.

In closing submissions filed on behalf of the plaintiff it was argued that it was just and equitable that the plaintiff be awarded between 40%-45% of the value of the property given her direct and indirect contributions towards the acquisition and improvement of the property. The court was urged to follow the principles set out in *Usayi* v *Usayi* 2003 (1) ZLR 684 (3) where the following passage was extracted:

> *"*How can one quantify in monetary terms the contribution of a wife and mother who for 39 years faithfully performed her duties as wife, mother, counsellor, domestic

> worker, house keeper, day and night nurse for her husband and children? How can one place a monetary value on the love, thoughtfulness and attention to detail that she puts into all the routine and sometimes boring duties attendant on keeping a household running smoothly and a husband and children happy? How can one measure in monetary terms the creation of a home and therein an atmosphere from which both husband and children can function to the best of their ability? In the light of these many and various duties how can one say as is often remarked: "throughout the marriage she was a housewife. She never worked?" In my judgment, it is precisely because no monetary value can be placed on the performance of these duties that the Act speaks of the "direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties*"*

Further the court was directed to the case of *Mhora* v *Mhora* SC-89-20 where the court summarised the concept of indirect contribution as:

> *"*Indirect contribution encompasses much more than the performance of domestic duties. It encompasses all aspects of a spouse's role in the life of the other spouse and their children in the day to day running of a family"

In both cases the Supreme Court upheld an award of 50% of property to the wife primarily on the basis of her indirect contribution.

The court was urged to give effect the principle equality of the sexes as espoused in the Convection against all forms of discrimination against women "CEDAW" and the Constitution.

On behalf of the defendant, however it was submitted that the plaintiff was entitled to no more than 15% Of the value of the house which figure, according to the defendant, accurately and fairly represented the extent of her direct and indirect contribution. Reliance was placed on the case of *Mutizhe* v *Mutizhe* (nee Fuwe) HH-483-18 and *Chivunga* v *Chivunga* HH 582-24 where in both cases the court awarded 30% to a wife whose indirect contribution was low.

Interestingly the defendant did not provide an example of a case where 15% was awarded.

The applicable law

Section 7 of the Matrimonial Causes Act [*Chapter 5:13*] sets out the object of the distribution of assets of the parties upon divorce namely to - "endeavour as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children

in the position they would have been in had a normal marriage relationship continued between the spouses."

It also sets out an overall blue-print of the factors the court should take into account in its quest for an equitable distribution of those assets. It provides in subsection 4 as follows:

> "(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following—
>
> (a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
>
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
>
> (c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
>
> (d) the age and physical and mental condition of each spouse and child;
>
> (e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
>
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
>
> (g) the duration of the marriage"

The court while retaining a broad discretion in the division of assets is required as far as is practicable to consider the indirect contribution of the parties. This is somewhat a difficult task as one is expected to not only quantify an otherwise non-monetary contribution but also compare its real worth against a monetary contribution. The jurisprudence around the interpretation and application of the above provision is now well settled. In *casu* the question is on the application of paragraph 4 above which enjoins the court to consider the – "the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties". The two dicta referred to by the plaintiff from the cases of *Usayi* v *Usayi* (supra) & *Mhora* v *Mhora* (supra) are instructive and will guide me in casu.

In the present matter, the factors which weigh in plaintiffs' favour and which tend to bolster her claim to the extent that it does are essentially the following; that the marriage has subsisted for a fairly long time, starting as it did as a registered customary law union to around 2003 or thereabout before being upgraded into a registered civil marriage.

Secondly, the plaintiff's indirect contributions in the acquisition of the property in the form of her informal business pursuits which augmented or otherwise supplemented the family income cannot be overlooked. Similarly, her role as caregiver to the defendant's children and those of his relatives was significant.

As far as the improvement of the property is concerned, her business exploits, no matter humble, are to be given recognition. That she purchased window frames and roofing sheets for this house is testament to her overall positive attitude towards the success of this construction venture. This is further supported by her actual physical participation in crushing of rocks into concrete stones and cooking for the builders as well as paying the builders in kind through the blankets she acquired in South Africa

That said, it is apparent that the bulk of the costs for that acquisition and improvement of the property were borne by the defendant. Firstly, the purchase price was solely through direct deductions from his salary. Secondly he is the one who met most of the costs associated with the improvement of the property.

Then there is the uncontroverted evidence by the defendant that the plaintiff has received the bulk of the rest of the property. A perusal of the PTC minute under the section of issues agreed upon also tends to support this position.

Ultimately, in my view, the plaintiff deserves a third (i.e., 33%) of the value of the property in question. Accordingly, the order below contains a comprehensive list of how the parties' assets are to be shared. The list includes the division of assets agreed upon at P.T.C.

IT IS ORDERED THAT:

1. A decree of divorce be and is hereby granted.
2. There shall be no order for post-divorce-spousal maintenance.
3. **DIVISION OF IMMOVABLE PROPERTY**

3.1. The plaintiff is awarded 33% of the value of **stand No. 3214 Lot 2 Makwasha, Zishavane** registered in the name of the defendant and the remaining 67% is hereby awarded to the defendant

3.1.1. Pursuant to 3.1. above:

a) The defendant is hereby granted the option to buy out plaintiff's share which option is to be exercised within **six months** of this order. For that purpose, the property is to be valued by a registered property evaluator and the cost of valuation to be borne by the defendant

b) In the event of the defendant failing to exercise this option, the property to be sold by private treaty to the best advantage of the parties and the proceeds shared in the ratio 33: 67

3.2. The parties to share the Phiri homestead, **Musiza Village, Ndinaneni, Zvishavane**, registered in the name of the defendant in equal shares (50/50).

3.2.1. Pursuant to 3.2. above, the plaintiff is hereby granted the option to buy out defendant's share which option is to be exercised within **six months** of the valuation. For that purpose, the property is to be valued by a registered property evaluator and the cost of valuation to be borne by the parties equally.

3.3. The parties to share **Stand No. 4366 Mabhula Zvishavane**, registered in the name of the defendant in equal shares (50/50)

3.3.1. Pursuant to 3.3 above, the property is to be sold by private treaty to the best advantage of the parties and the proceeds shared equally between the parties.

4. DIVISION OF MOVABLE ITEMS

4.1. The gold detector belonging to the defendant is to be shared **equally** between the parties (50/50).

4.1.1. Pursuant to 4.1 above, the defendant is hereby granted the option to buy out plaintiff's share which option is to be exercised within three months of this order. For that purpose, the property is to be valued by any suitable independent valuator and the cost of valuation to be borne by the parties equally.

4.2. The rest of the movables to be distributed as tabulated below:

PLAINTIFF	**DEFENDANT**
50% value of the Toyota Probox AFF 4306. The vehicle to be sold by private treaty to the best advantage of the parties and the proceeds shared equally	50% value of the Toyota Probox AFF 4306. The vehicle to be sold by private treaty to the best advantage of the parties and the proceeds shared equally.
1 Wardrobe 2 piece	
1 set of sofas	
1 Kitchen unit 3 piece	
Room divider	
1 double bed	1 double bed
1000 litre drum	1000 litre drum
Kitchen utensils	2 pots
Dressing table	
3 steel drums	3 steel drums
Plastic Drum	
1 king bed	
1 Headboard & Dressing Table	
1 Deep freezer	1 Upright Freezer
Electric Stove 3 Plate	Single Stove 2 Plate
1 Glass Table	1 Glass Coffee Table
	32 Inch LG Television
	5kg Gas Tank & Gas Stove 2 Plate
5 x 20 litre bucket	5 x 20 litre bucket
6 blankets	4 blankets
4 cover beds	1 4 cover beds

5. Each party to bear own costs of suit.

Mugiya Law Chambers, plaintiffs' legal practitioners

Pundu & Company, Defendants' legal practitioners.